

	substantially similar issues is sufficient. (See <i>Landis, supra</i>, 299 U.S. at 254.) Criteria for the court to consider include: (1) potential prejudice to the nonmoving party; (2) hardship and inequity to the moving party if the action is not stayed; and (3) the judicial resources that would be saved by avoiding duplicative litigation if the cases are in fact consolidated. (<i>Rivers v. Walt Disney Co.</i> (C.D. Cal. 1997) 980 F. Supp. 1358, 1360.) On August 28, 2025, Defendant’s insurer, Scottsdale Insurance Company, filed an interpleader and declaratory relief action in the Central District of California (“Interpleader Action”). (Rasmussen Dec., ¶ 5 and Ex. A.) The Interpleader Action concerns three pending lawsuits: <i>DelGreco v. Viking Security Services, Inc.</i>, et al., (OCSC Case No. 30-2024-01400773-CU-PO-CJC; <i>Stump v. Viking Security Services, Inc, et al.</i>, (OCSC Case No. 30-2023-01326370-CU-PO-CJC; and this action (the “Underlying Actions”). (Id. at ¶ 6.) Scottsdale alleges it issued to Viking an insurance policy that contained an Assault and/or Battery Limited Liability Coverage endorsement. (Rasmussen Dec., ¶ 7.) The defendants in the Interpleader claim that the Policy provides up to \$1 million in limits of liability for the Underlying Actions. (Ibid.) Scottsdale disputes this position due to the \$100,000 Each Event, \$200,000 Aggregate Limits of Liability in the A&B Coverage Form. (Ibid.) Trial in the Interpleader Action is set for December 8, 2026. (Id. at ¶ 9.) Defendant contends it does not have assets sufficient to fund resolution of this matter or satisfy a judgment outside of its insurance. (Rasmussen Dec., ¶ 10.) A judgment against Viking in this matter would likely result in an uncollectable judgment and/or bankruptcy. (Ibid.) The issues to be tried in this case are different from those to be tried in the Interpleader Action. Here, Plaintiffs assert claims for assault and battery, among others, alleging that Plaintiff David Colligan was attacked by a security guard who worked for Defendants. Defendants’ liability for these claims would not affect the existence or amount of insurance coverage for this incident. Defendants have not shown that there is a risk of inconsistent rulings. This case has been pending for three years and Defendants have not shown that a stay would promote judicial efficiency. Defendants have also not provided sufficient evidence that they would suffer inequity if the action is not stayed.
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